

TX.1 The Owner-Builder's Legal Position in Texas

What Texas actually requires of a person building their own house — the licenses that do not exist, the three trade licenses that do, and the city-hall practices that decide what you may do yourself.

Before you use this document

This is a process reference, not legal advice. Texas has no single permit counter: each city administers its own permits and code editions, county programs vary, and several state agencies each own one piece of the picture. Confirm every item with the office that will actually issue it before you rely on it. Statute text was read at statutes.capitol.texas.gov in August 2026; statutes change.

THE SHORT VERSION

Texas has **no statewide general contractor license** and **no state building permit** for houses. You do not apply to the State for permission to be your own builder — there is no affidavit, no exemption to claim, no board that reviews you. What Texas regulates instead is narrower and sharper: **electrical, plumbing, and HVAC work each require a state license**, each licensing law has a homeowner carve-out, and **the three carve-outs use different words with different traps**. On top of that, if your lot is inside a city, the city's permit system treats you as the contractor of record — and each city has its own rules about what an owner may pull permits for.

Absence of a GC license: TDLR's regulated-program list (tdlr.texas.gov), checked August 2026. Trade licensing: Occupations Code Chs. 1305 (electrical), 1301 (plumbing), 1302 (HVAC).

The position at a glance

Question	Texas's answer
Do you need a license to build your own house?	No. As of August 2026 no Texas state agency issues a general contractor or home builder license — for you or anyone else.
Do you need a state permit?	No such permit exists. Building permits in Texas are municipal; counties generally cannot require one for a single-family house (see TX.2).
May you wire, plumb, and duct it yourself?	Each trade has its own homeowner exemption with its own wording — and the electrical one is genuinely uncertain for a new build. Read the trade sections below before you decide.
Who checks any of this?	Inside a city: the city's permit and inspection system. Outside one: almost nobody by default — which is its own kind of trap (see TX.3).

THE ABSENCE — NO GC LICENSE, NO STATE PERMIT

This is a provable absence, and worth proving, because officials and lenders sometimes doubt it. The Texas Department of Licensing and Regulation's public A-Z list of every program it regulates contains no general-contractor, home-builder, or residential-construction program; its construction-side programs are air conditioning and refrigeration contractors, electricians, and water well drillers and pump installers (plus elevators, boilers, and industrialized housing). The agency that once registered builders — the Texas Residential Construction Commission — was abolished when its statute expired in 2009 and was never replaced.

There is also no statewide permit counter. The building-permit statutes are all municipal (Local Government Code Chapter 214), and the county statutes affirmatively deny permit power over houses (Chapter 233 — worked in TX.2). The Texas State Law Library's building-codes guide puts it plainly: state law adopts minimum residential *codes* for cities and some unincorporated areas — codes, not permits.

Print-date warning — say it the careful way

The accurate sentence is: **"As of August 2026, no Texas state agency issues a general contractor or home builder license."** It is not "no license is ever required" — three trades ARE licensed, below — and it is not a timeless fact: legislatures create licenses, and the TRCC's existence from 2003 to 2009 proves Texas has tried. Verify nothing has changed at tdlr.texas.gov before you rely on this.

TDLR regulated-program list, tdlr.texas.gov, August 2026; Local Gov't Code Chs. 214, 233; Texas State Law Library building-codes guide, guides.sll.texas.gov.

ELECTRICAL — OCCUPATIONS CODE CH. 1305 (TDLR)

The rule: *"Except as provided by Section 1305.003, a person or business may not perform or offer to perform electrical work ... unless the person or business holds an appropriate license issued or recognized under this chapter."* (§ 1305.151) The homeowner carve-out is in § 1305.003(a)(6): the chapter does not apply to *"work not specifically regulated by a municipal ordinance that is performed in or on a dwelling by a person who owns and resides in the dwelling."* TDLR's own gloss agrees: a person who performs electrical work on a dwelling "that they own and reside in" is not required by the state to be licensed — with the caveat that municipal or regional regulations may override the exemption.

The two traps in (a)(6) — read them before you buy wire

Trap one: "not specifically regulated by a municipal ordinance." A city ordinance can take the exemption away entirely — and Houston does. The City of Houston issues electrical permits only to registered, licensed master electricians; a homeowner cannot pull an electrical permit in Houston at all (Houston Permitting Center, electrical permit pages and the Houston Electrical Code administrative provisions). Ask your city before assuming the state exemption reaches you.

Trap two: "owns and RESIDES in the dwelling." A new house under construction is a dwelling you do not yet reside in. TDLR has published no formal interpretation for new construction, and the plain text reads as existing-residence work — contrast the plumbing and HVAC exemptions, which use ownership language, not residence-in-the-dwelling. **The safe reading is that wiring a new house you do not yet occupy is NOT clearly covered.** If you are building in an unincorporated area and counting on this exemption, either hire a licensed electrician or put the question to TDLR in writing and keep the answer. This is the biggest legal-risk item in this kit.

Even where the exemption applies, the code still does: *"Electrical work performed in an unincorporated area of the state must be installed in accordance with standards at least as stringent as the requirements of the state electrical code"* (§ 1305.201(e)) — which, by TDLR rule, is the **2023 National Electrical Code**, effective September 1, 2023. Inside a city, electrical work must follow local ordinances (§ 1305.201(d)).

Occ. Code §§ 1305.151, 1305.003(a)(6), 1305.201(d), (e); 16 TAC § 73.100 (2023 NEC); TDLR exemptions page, tdlr.texas.gov/electricians/exemptions.htm. All read August 2026.

PLUMBING — OCCUPATIONS CODE CH. 1301 (TSBPE — NOT TDLR)

Plumbing is licensed by the **Texas State Board of Plumbing Examiners** — a standalone board, not TDLR. The board survived its 2019 sunset scare and was continued; its statute now runs to September 1, 2033 (§ 1301.003, as amended 2021 and 2023). Guides claiming plumbing moved to TDLR are wrong.

The homeowner exemption is one sentence, verbatim: *"PLUMBING BY PROPERTY OWNER IN HOMESTEAD. A property owner is not required to be licensed under this chapter to perform plumbing in the property owner's homestead."* (§ 1301.051) No occupancy condition, no resale condition — in the statute itself.

Two edges to respect

"Homestead" for a house that does not exist yet. Texas homestead law can attach to land intended and prepared for homestead use before the house exists, but neither Chapter 1301 nor the board's rules define the term for this exemption. For a new build on land you own and intend as your homestead the exemption is generally understood to apply — but confirm with TSBPE (tsbpe.texas.gov) before relying on it, and city permits and inspections apply regardless.

The rural exemption is NOT for you. § 1301.052 exempts some unlicensed plumbing outside cities — but only work *"other than plumbing performed in conjunction with new construction, repair, or remodeling."* A new house is new construction; the homestead exemption in § 1301.051 is the one that matters.

Codes: the board adopts the Uniform Plumbing Code and International Plumbing Code and may adopt later editions by rule (§ 1301.255(a), (b)); licensees working in areas not otherwise regulated must follow the board-adopted code (§ 1301.255(c)); cities may amend locally (§ 1301.255(d)). This kit prints no UPC/IPC edition year — the board adopts editions by rule and has amended them repeatedly. Verify the current edition in the board rules at tsbpe.texas.gov.

Occ. Code §§ 1301.003, 1301.051, 1301.052, 1301.255; tsbpe.texas.gov. Read August 2026.

HVAC — OCCUPATIONS CODE CH. 1302 (TDLR)

A license is required to engage in air conditioning and refrigeration contracting (§ 1302.251(a)); the state license is valid statewide and cities may not require a municipal license on top of it (§ 1302.251(b)). The homeowner exemption, verbatim: *"HOMEOWNERS. This chapter does not apply to a person who engages in air conditioning and refrigeration contracting in a building owned solely by the person as the person's home."* (§ 1302.053)

Those are narrower words than the plumbing exemption, and two readings are unresolved: **"owned solely by the person"** on jointly titled property, and **"as the person's home"** for a new build you do not yet live in. No TDLR published interpretation was found on either. For a new build, confirm with TDLR before relying on it. And exemption from the license is not exemption from the permit: *"Work performed by a person who is exempt from this chapter is subject to any permit, inspection, or approval required by a municipal ordinance."* (§ 1302.052)

Occ. Code §§ 1302.251(a), (b), 1302.053, 1302.052. Read August 2026.

THE THREE EXEMPTIONS SIDE BY SIDE

Trade-by-trade — three different wordings, three different traps

Trade	The exemption's words	The unresolved edge	Authority
Electrical TDLR	"...performed in or on a dwelling by a person who owns and resides in the dwelling" — and only where no municipal ordinance regulates it	New construction (you do not reside there yet); cities can abolish it by ordinance — Houston has	§ 1305.003(a)(6)

Trade-by-trade — three different wordings, three different traps

Trade	The exemption's words	The unresolved edge	Authority
Plumbing TSBPE	"A property owner is not required to be licensed ... to perform plumbing in the property owner's homestead "	"Homestead" scope for a not-yet-occupied new build — generally understood to apply, unconfirmed by rule	§ 1301.051
HVAC TDLR	"...contracting in a building owned solely by the person as the person's home "	Joint title; a new build not yet "the person's home"	§ 1302.053

The rule that covers all three

Being exempt from a **license** is never being exempt from a **permit**. Inside a city, the city's permit, inspection, and registration ordinances apply to exempt work in every trade (§ 1302.052 says so expressly for HVAC; § 1305.201(d) for electrical; § 1301.255(d) lets cities amend the plumbing code locally). Outside a city, the licensing laws still apply — the enforcement gap in TX.3 is not a legality gap.

WATER WELLS — THE ONE CLEAN CARVE-OUT

The own-property exemption is built into the definition: a "*water well driller*" "*does not include a person who ... drills, bores, cores, or constructs a water well on the person's own property for the person's own use*" (Occ. Code § 1901.001(15)(A)). A landowner may drill their own well without a TDLR license. The real gate is local: most of Texas sits inside a groundwater conservation district (Water Code Ch. 36), and districts commonly require registration or a permit before ANY well is drilled — even exempt domestic wells — plus spacing rules. Find and call your district before you drill; TX.2 carries the checklist line.

Occ. Code § 1901.001(15)(A); Water Code Ch. 36. District rules are district-by-district — verified only as to the pattern, August 2026.

CITY HALL PRACTICE — REGISTRATION AND OWNER-BUILDER PERMITS

Inside a city, the licensing statutes are only half the story. Cities require the person pulling each permit to be registered or licensed with the city — and each city decides which permits an owner-occupant may pull personally. Three verified examples of how differently that goes:

Three cities, three different owner-builder doors (verified August 2026)

City	What its own pages say
Fort Worth	Anyone pulling building, mechanical, plumbing, or electrical permits must hold a Development Services Contractor Registration — and the city publishes Homestead Permit Affidavit forms by which a homeowner certifies they own and live at the address and will personally perform the work under a specific permit (mechanical and plumbing versions).
San Antonio	Contractors register with Development Services before permitting; the city licenses residential "Home Improvement Contractors" (Class I/II). Homeowners " <i>attesting that they own and will occupy or rent their residence for a period of 12 months after project completion can request a homeowner's permit ... and will be responsible for all inspections</i> " (sa.gov, DSD Residential Permits).
Houston	A homeowner may obtain the plumbing permit and do the work on a residence they "own, occupy, and have ... registered as their homestead" — form CE1284, the Homeowner's Plumbing and Irrigation System Permit Application — but electrical permits issue only to licensed master electricians. Same city, opposite answers by trade.

The two questions to ask your city — in writing

The label differs city to city — "homeowner permit," "homestead affidavit," "owner-builder" — and some cities have no homeowner path for some trades. Before you count on doing any work yourself, ask the permit office: **(1) May the owner-occupant pull this permit personally? (2) Which trades are excluded?** Keep the written answer with this kit.

fortworthtexas.gov, Development Services — Contractor Registration and Homestead Affidavits PDF; sa.gov, DSD Contractor and Residential Permits pages; houstonpermittingcenter.org, form CE1284 and electrical permit pages. All read August 2026.

THE 2023-2025 LAWS — WHAT CHANGED AROUND YOU

- **HB 2127 (2023), the "Texas Regulatory Consistency Act,"** preempts city regulation in fields occupied by several state codes, including the Occupations Code. A district court held it unconstitutional in 2023; the Third Court of Appeals reversed and upheld it in July 2025. Its practical effect on trade permitting is still unsettled in 2026 — this kit prints no "city X can no longer require Y" claims, and the express municipal authorizations cited above (like § 1305.201) were not repealed.
- **SB 2038 (2023):** landowners in most ETJ areas may petition for release from a city's extraterritorial jurisdiction (Local Gov't Code § 42.102); if the city sits on a valid petition, "*the area is released by operation of law*" (§ 42.105(d)). 2025's HB 2512 narrowed which areas qualify (§ 42.101) — check the exclusions before planning around a release. What the ETJ means for you is worked in TX.4.
- **HB 3699 (2023)** tightened municipal platting: cities must publish their complete plat-application checklist, and the trigger for when a plat is required was narrowed. Relevant

at the "is my lot legally platted?" step inside cities and the ETJ — see TX.2, Track A.

HB 2127 (88R) and the July 2025 Third Court of Appeals decision; SB 2038 (88R) → Local Gov't Code §§ 42.101-.105, as amended by HB 2512 (89R, 2025); HB 3699 (88R), enrolled bill analysis at capitol.texas.gov. Read August 2026.

POSITION CHECKLIST — SETTLE THESE BEFORE YOU PLAN THE WORK

Every line is a decision this document has shown to be yours to make — and most of them change the budget. Work down it with a pen.

Step 1 — Your track and your city's rules

	Item	Date	Notes / who answered
☐	Determined whether the lot is inside city limits, inside an ETJ, or unincorporated (TX.4 shows how) Track: _____		
☐	If inside a city: asked the permit office, in writing, whether an owner-occupant may pull the building permit and each trade permit personally — and which trades are excluded		
☐	City's owner-builder / homestead form identified (name and number vary by city — see TX.5) Form: _____		
☐	If in an ETJ: checked whether the city applies platting or other rules there, and whether an SB 2038 release petition makes sense for the lot		

Step 2 — Trade-by-trade decisions

	Item	Date	Notes
☐	ELECTRICAL: decided between a licensed electrician (license verified with TDLR) and the homeowner exemption — and if relying on the exemption for a NEW build, put the question to TDLR in writing first (the "owns and resides in" trap) License #: _____ Verified: _____		
☐	PLUMBING: confirmed the homestead exemption covers your situation with TSBPE if the house is not yet occupied — or hired a licensed plumber		
☐	HVAC: confirmed with TDLR if title is joint or the house is not yet your home — or hired a licensed contractor		

Step 2 — Trade-by-trade decisions

	Item	Date	Notes
☐	WELL (if any): groundwater conservation district identified and its registration/permit and spacing rules confirmed BEFORE drilling		
☐	Written answers filed with this kit TDLR: _____ TSBPE: _____ District: _____		

Sources — every Texas claim in this document (verified August 2026)

What this document states	Authority
No state GC license as of August 2026; TRCC expired 2009	TDLR program list, tdlr.texas.gov
Electrical homeowner exemption — owns AND resides; cities can override	Occ. Code §§ 1305.151, 1305.003(a)(6)
Houston issues electrical permits only to licensed masters	houstonpermittingcenter.org
Unincorporated electrical work must meet the 2023 NEC	Occ. Code § 1305.201(e); 16 TAC § 73.100
Plumbing board (TSBPE) continued through Sept. 1, 2033	Occ. Code § 1301.003
Homestead plumbing exemption	Occ. Code § 1301.051
Rural plumbing exemption excludes new construction	Occ. Code § 1301.052
HVAC homeowner exemption — "owned solely ... as the person's home"	Occ. Code § 1302.053
Exempt HVAC work still subject to municipal permits	Occ. Code § 1302.052
Own-property, own-use water well needs no TDLR license	Occ. Code § 1901.001(15)(A)
City owner-builder practice: Fort Worth homestead affidavits; San Antonio homeowner's permit (12-month attestation); Houston plumbing-only, form CE1284	fortworthtexas.gov ; sa.gov ; houstonpermittingcenter.org
HB 2127 upheld on appeal July 2025; practical reach unsettled	88R HB 2127; Third Ct. App. (2025)
ETJ release by petition; release by operation of law if the city sits on it	Loc. Gov't Code §§ 42.102, 42.105(d)

Read any statute cited above at statutes.capitol.texas.gov — pick the code (Occupations, Local Government, Health & Safety, Insurance, Property, Water), then the chapter; the Texas Constitution is under "CN." All statute text verified August 2026.